

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                                              |                           |                                                                                                                                                                                                                       |
|---------------------------------------------------|------------------------------------------------------------------------------|---------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Max Gross                        | Team:<br>Team # 6                                                            | CCRB Case #:<br>200900996 | <input type="checkbox"/> Force <input checked="" type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input checked="" type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Friday, 01/16/2009 6:30 PM    | Location of Incident:<br>At the intersection of Philip Avenue & Logan Avenue | 18 Mo. SOL<br>7/16/2010   | Precinct:<br>45                                                                                                                                                                                                       |
| Date/Time CV Reported<br>Fri, 01/16/2009 12:00 AM | CV Reported At:<br>IAB                                                       | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Thu, 01/22/2009 1:43 PM                                                                                                                                                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. POM Robert Rodriguez | 14441  | 926015 | PBBX TF |

| Officer(s)               | Allegation                                                                   | Investigator Recommendation |
|--------------------------|------------------------------------------------------------------------------|-----------------------------|
| A . POM Robert Rodriguez | Discourtesy: Officer Robert Rodriguez spoke rudely to § 87(2)(b)             | A . Complaint Withdrawn     |
| B . POM Robert Rodriguez | Abuse: Officer Robert Rodriguez threatened § 87(2)(b) with the use of force. | B . Complaint Withdrawn     |

### Synopsis

On January 19<sup>th</sup>, 2009, § 87(2)(b) filed a complaint with IAB via phone, generating log number 09-02632. This case was subsequently spun-off, generating log number 09-02632, and forwarded to the CCRB on January 22<sup>nd</sup>, 2009. On January 16<sup>th</sup>, 2009, at around 6:30pm, § 87(2)(b) was pulled over at the intersection of Logan Avenue and Phillips Avenue in the Bronx by a marked patrol vehicle. PO1, identified by the CCRB as Officer Robert Rodriguez of Patrol Borough Bronx Task Force, approached § 87(2)(b)'s vehicle and informed him that he was being stopped because he had observed him running through a stop sign. § 87(2)(b) a retired US Marshall, stated that he immediately informed Officer Rodriguez that he had a licensed firearm inside his vehicle. § 87(2)(b) also informed Officer Rodriguez that he “differed on his assessment” of the traffic stop, stating that he had not run through the stop sign. According to § 87(2)(b) Officer Rodriguez then became hostile, demanding § 87(2)(b)'s license and registration information in order to issue him a summons. Before he returned to his RMP, Officer Rodriguez allegedly told § 87(2)(b) “If you get out your fucking car, I’m going to shoot you” (**Allegations A and B**). § 87(2)(b) states that these comments, and the manner in which Officer Rodriguez stated them, made him feel extremely fearful and uneasy while he waited to be issued the summons. Eventually, Officer Rodriguez returned and issued § 87(2)(b) a summons for § 87(2)(b), and then left the scene. The next day, § 87(2)(b) states that he went to the 45<sup>th</sup> Precinct to make a complaint and was informed by two unidentified officers that Officer Rodriguez has a history of similar complaints.

§ 87(2)(b) was able to obtain Officer Rodriguez’s name and badge information off the summons he received at the scene. § 87(2)(b) stated that Officer Rodriguez was the only officer at the scene. Furthermore, Officer Rodriguez is also identified in the initial IAB report as the subject officer. Therefore, the allegations are pleaded against Officer Robert Rodriguez of Patrol Borough Bronx Task Force.

On January 28<sup>th</sup>, 2009, § 87(2)(b) was contacted and he provided an initial narrative about the incident. § 87(2)(b) seemed displeased that his complaint had been forwarded to the CCRB and almost immediately expressed his lack of confidence in obtaining a favorable outcome if he pursued his complaint. After a lengthy conversation which included discussions about the CCRB’s role as well as discussions detailing the mediation and investigative processes, § 87(2)(b) requested a few days to think about how he would like to go forward with his complaint. On February 2<sup>nd</sup>, 2009, the investigator contacted § 87(2)(b) and § 87(2)(b) stated that he wanted to withdraw his complaint because he felt nothing would come of it; also citing his respect for the NYPD and his higher interest in disputing the validity of the traffic summons as alternate reasons for the withdrawal. § 87(2)(b) expressed that he was withdrawing his complaint on his own freewill, and his decision had not been coerced or influenced by any member of the CCRB and/or NYPD. Supervisor Vanessa Rosen reviewed § 87(2)(b)'s withdrawal statement and determined that it complied with agency standards. On February 2<sup>nd</sup>, 2009, § 87(2)(b) was sent a complaint withdrawal letter. This letter will be entered into the case file upon return. It is therefore recommended that this case be closed complaint withdrawn.

Investigator:

Date:

Supervisor:

Date:

Reviewed by:

Date:

Reviewed by:

Date: